

Vide This Order vs State & Ors. 1/7 on 9 October, 2015

IN THE COURT OF SH. DEVENDER KUMAR, ADDITIONAL
SESSIONS JUDGE-03(N.E), KARKARDOOMA COURTS, DELHI.

CR No. 26/15
PS : New Usmanpur

Smt. Bhagirathi
W/o Sh. Rajender Singh
R/o C-45/5, Gamri Extn.,
Gamri Village, Vth Pusta Gamri,
Bhajan Pura, Delhi -53

Versus

1. The State (NCT of Delhi)
2. Rajender Singh @ Rajender Choudhary
S/o Late Sh. Gopi Chand
R/o House No. 892, Sector -4,
R.K.Puram, Delhi.

Date of assignment	:	24.08.2015
Date of Arguments	:	23.09.2015
Date of Pronouncement	:	09.10.2015

Order :

1. Vide this order, I shall decide a criminal revision filed by the revisionist against the order dated 16.07.2015 passed by Ld. ACMM thereby discharging the accused / respondent no. 2 Rajender Singh in

complaint case no. 146/2012.

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2. Arguments of both parties heard. Trial Court record perused.

3. This revision petition has been preferred against the order of Ld. Trial Court dated 16.07.2015 by which the respondent no. 2 was discharged of the charges under Section 494 IPC as revisionist could not establish a prima facie case on merit to frame charges. It is further argued that the revisionist has proved a number of documents including electoral rolls of second wife of respondent no. 2 Ms. Kanchan, birth certificate of son of respondent no. 2 from second marriage, service record of accused and many other documents to prove that respondent no. 2 has entered into second marriage with Ms. Kanchan. It is further argued that the Ld. Trial Court has neglected all such

material evidence proving that Ms. Kanchan has not only solemnized second marriage with respondent no. 2, but also delivered a male child from second marriage in a government hospital where name of respondent no. 2 has been mentioned as father of child. It is further argued that Ld. Trial Court has ignored all such evidence but preferred to give importance to the ceremonies of second marriage and dismissed the complaint case of the revisionist thereby discharging the respondent no. 2. It is further argued that the Ld. Trial Court has wrongly come to the conclusion that Ld. Trial Court has seen a strong suspicion instead of a prima facie case to frame a charge and, even it has been wrongly observed that no other evidence could have led in post-charge evidence as revisionist was well within her rights to lead additional evidence to prove any fact subsequently. It is further argued that the Ld. Trial Court has wrongly CR No. 26/15 Bhagirathi Vs. State & Ors. 2/7 concluded that the revisionist has no prima facie case on merit to frame charges and order is liable to be set aside.

4. On the other hand, Ld. Addl. PP for State has strongly opposed this revision and has submitted that order passed by Ld. Trial Court is not bearing any illegality or infirmity and same is liable to be affirmed.

5. Ld. Counsel for respondent no. 2 has argued that the order passed by Ld. Trial Court is as per law as the revisionist was required to prove a valid second marriage to make the respondent guilty under Section 494 IPC It is further argued that section 17 of Hindu Marriage Act, 1955 has laid down criteria for a valid marriage and both the parties are governing by Hindu Marriage Act, due to this criteria must have been satisfied which could not be done and Ld. Trial Court has rightly discharged the accused. It is further argued that Hon'ble Supreme Court of India has already held that 'Homo' and 'Saptapati' are essential ceremonies of a valid marriage in Hindus which could not be proved in this case and order is liable to be affirmed. In support of his arguments, Ld counsel for respondent no. 2 has relied upon the judgments in 1971 SCC (Cri) 362 Smt. Priya Bala Ghosh Vs. Suresh Chandra Ghosh and 1996 CRI. L.J 4286 titled Brij Lal Bishnoi Vs. State & Anr.

6. I have heard the arguments and perused the record. The main grievance of revisionist is that the Ld. Trial Court has ignored the CR No. 26/15 Bhagirathi Vs. State & Ors. 3/7 vital evidence of the revisionist including birth certificate of a child born out of second marriage, report of process server in which Ms. Kanchan admitted herself as wife of respondent no. 2, electoral rolls and other documents in which respondent no. 2 has disclosed Ms. Kanchan as his wife. Ld. Trial Court has considered all these documents and preferred to discard only on the basis of law laid down by Hon'ble Supreme Court of India in which even admission of accused regarding second marriage was not found sufficient to convict accused under Section 494 IPC on the ground that the validity of second marriage must be proved in terms of section 17 of Hindu Marriage Act, 1955. I have gone through the judgment relied by Ld. Counsel for respondent no. 2. The judgment titled Smt. Priya Bala Ghosh V. Suresh Chandra Ghosh, 1971 SCC (Cri.) 362 has dealt with the similar facts of the case in hand and concluded that a validity of second marriage is a condition precedent for conviction of an accused under Section 494 IPC. A second marriage has been barred under Hindu Marriage Act and has been made punishable under Section 494 IPC. The conditions of validity of second marriage are to be considered in terms of Section 17 of Hindu Marriage Act, 1955. In this judgment, Hon'ble Court has relied upon another land mark judgment on this point titled Kanwal Ram & Ors. Vs.

Himachal Pradesh Administration, AIR (1966) 1 SCR 139. In this case, the Hon'ble Court has held that even admission by accused is no evidence of marriage for purpose of proving an offence of bigamy and adultery. It was concluded by Hon'ble Court that 'Homo' and CR No. 26/15 Bhagirathi Vs. State & Ors. 4/7 'Saptapati' are essential ceremonies of a valid marriage which should be performed in terms of Section 7 of Hindu Marriage Act, 1955. Similarly, in judgment titled Bhaurao Shanker Lokande and Anr. Vs. State of Maharashtra & Anr., AIR 1965 SC 1564, it has been held that in a prosecution of bigamy under Section 494 IPC, it is necessary to establish that the second marriage had been duly performed in accordance of essential religious rites applicable in the form of marriage gone through.

7. Even a similar issue came before Hon'ble High Court of Delhi in 1996 CRI. L.J. 4289 and it was held that complainant has to provide strict proof of second marriage for punishment under Section 497 IPC. Again all the conditions laid down by Hon'ble Supreme Court of India have been retreated for a condition of a valid second marriage.

8. After going through the legal parameters laid down by Hon'ble Higher Courts in the abovesaid judgments, it is clear that proof of a valid marriage in terms of section 7 r/w Section 17 of Hindu Marriage Act, 1955 is necessary. In the present case, the revisionist has proved a number of documents including electoral roll, birth certificate of child and ration card, etc. in which Ms. Kanchan has been shown as wife of respondent no. 2. Even she admitted before Process Server to be the wife of respondent no. 2 and received the summons in the same capacity, however, she has denied to get married with respondent no. 2 during her examination before the court in pre-charge evidence.

CR No. 26/15 Bhagirathi Vs. State & Ors. 5/7 Even the parents of Ms. Kanchan were examined and they have also shown their ignorance to the marriage of Ms. Kanchan with respondent no. 2 and have denied that she has got married with respondent no. 2. Since admission of husband was not considered as proof of second marriage in the judgment cited above, then, merely an admission of a lady before Process Server or in document before some government authorities, could not be considered as admission to conclude that she got married with respondent no. 2 during existence of first marriage of respondent no. 2 with revisionist.

9. Ld. Trial Court has relied upon Section 50 of Indian Evidence Act to form its opinion regarding relationship of one person to another, but this opinion cannot substitute the proof of a second marriage and, Ld. Trial Court has rightly not formed its opinion regarding second marriage on the basis of this provision alone. As such, on the basis of material available on record before Ld. Trial Court, there is no evidence on record to prove that the respondent no. 2 has entered into second marriage during existence of his first marriage.

10. Ld. Counsel for revisionist has strongly argued that Ld. Trial Court was supposed to see a prima facie case on merit to frame charges instead of consideration of a very strong suspicion. The argument of Ld. Counsel has no substance as the observation of Ld. Trial Court that the term 'prima facie' implies the existence of very strongly suspicion that accused had committed the offence was only CR No. 26/15 Bhagirathi Vs. State & Ors. 6/7 with regard to the implication of term 'prima

facie' case. A prima facie case is to be formed on the basis of material available on record. In this case, revisionist has already led evidence on record including examination of alleged second wife Ms. Kanchan, her parents and other officials. If all these witnesses have failed to prove the solemnization of second marriage by Respondent no. 2 in terms of Hindu Marriage Act, 1955, then what else the other witnesses would depose in post charge evidence. At the time of framing of charge, the case of the prosecution has to be taken as whole and if no offence is made out even in the absence of any rebuttal of opposite party, then accused has to be discharged. In similar manner, in this case, the case of the revisionist is taken as whole but it is not possible to hold the accused prima facie guilty under Section 494 IPC. As such, Ld. Trial Court has rightly concluded and came to the conclusion that no charge under Section 494 IPC is made out against accused and accused was rightly discharged. The order dated 16.07.2015 passed by Ld. Trial Court is not bearing any illegality or infirmity and same is hereby affirmed. As such, this revision petition is hereby dismissed. TCR be sent back alongwith copy of order to Ld. Trial Court. File be consigned to record room after due compliance.

Announced in open court
today on 09.10.2015

(Devender Kumar)
Additional Sessions Judge-03
(NE): Karkardooma Courts, Delhi.

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